

The

Kolkata Gazette
सत्यमेव जयते

Extraordinary
Published by Authority

KARTIKA 3]

FRIDAY, OCTOBER 25, 2019

[SAKA 1941

PART I—Orders and Notifications by the Governor of West Bengal, the High Court, Government Treasury, etc.

WEST BENGAL ELECTRICITY REGULATORY COMMISSION

NOTIFICATION

No. 62 /WBERC

Kolkata, the 23rd October, 2019

In exercise of the powers conferred by section 181 read with clause (d) of sub-section (2) of section 39, clause (c) of section 40, sub-sections (2), (3) and (4) of section 42 and section 66 of the Electricity Act, 2003 (36 of 2003) and all powers enabling on that behalf the West Bengal Electricity Regulatory Commission (WBERC) hereby makes the following regulations to amend the West Bengal Electricity Regulatory Commission (Open Access) Regulations 2007 published vide Notification No. 35/WBERC dated 12.04.2007 along with subsequent amendment vide Notification No 45/WBERC dated 22.05.2009, collectively termed as principal regulations.

1. Short title and commencement.

1.1 These regulations may be called the West Bengal Electricity Regulatory Commission (Open Access) (Amendment) Regulations, 2019.

1.2 They shall come into force on the date of their publication in the Official Gazette.

2. For regulation 14.3.1 of the Principal regulations, the following regulation shall be substituted

" 14.3.1 Transmission Charges:

- a) Transmission charges shall represent charges for conveyance of electricity through transmission lines and associated system of a transmission licensee and shall be recovered from transmission system users as per the provisions of Tariff Regulations.
- b) Transmission charges shall be calculated on the basis of MW capacity allotted and shall be expressed in Rs/MW/month for Long Term Open Access and in paisa/unit for Short Term Open Access.
- c) The Commission shall determine the Annual Fixed Cost (Aggregate Revenue Requirement) of the Transmission Licensee in terms of Tariff Regulations and specify the transmission charges for long-term open access in the Tariff Order in terms of Rs./MW/month.

- d) The rates for short-term open access shall be calculated as per the following formula and levied from each short-term open access consumer:

Transmission charges from STOA = $AFC \times 10^4 / [SCL \times 365 \times 24]$ paisa/unit Where: –

- i) "AFC" means the Annual Fixed Cost (Aggregate Revenue Requirement) in Rs Lakh as specified in the Tariff Regulations.
 - ii) "SCL" means sum of the allotted transmission capacities in MW to all the long-term transmission customers of the transmission system concerned
- e) The Transmission Licensee and SLDC shall in its website display the transmission charges payable for Long Term Open Access and Short-term open access.
- f) Transmission charges in case of long-term open access transactions for part of a month (at the beginning or end of the transaction period) shall be computed on prorata basis for that month.
- g) For using intervening transmission facility, the transmission charges for such facilities shall also be applicable for respective categories of Open Access Customers.

3. For regulation 14.3.2 of the Principal regulations, the following regulation shall be substituted :–

14.3.2 Wheeling Charges:

- a) The wheeling charges shall represent the charges for the use of the distribution system and associated facilities of a Distribution Licensee for conveyance of electricity through such distribution system and associated facilities and shall be determined by the Commission from time to time in accordance with the Tariff Regulations.
- b) Wheeling charges payable to the distribution licensee by the Open Access customers shall be such as would be decided by the Commission in the tariff order of the respective distribution licensee or through separate order in this respect.
- c) Distribution licensee shall in its website display the wheeling charges payable by the Open Access Customer.

By order of the Commission,

Place: Kolkata
Date: 23.04.2019

T. K. MUKHERJEE
Secretary of the Commission